TENTATIVE RULINGS

DEPT W15

JUDGE RICHARD Y. LEE

Date: August 27, 2026

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's website for rules and procedures for court reporters obtained by the Parties.

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5915. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Do not call the department unless ALL parties submit on the tentative ruling.**

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling. The Court interprets a party's failure to appear at the hearing as a waiver of oral argument.

Remote Appearances: Department W15 permits non-evidentiary proceedings, including law and motion, to be conducted remotely. *If you are appearing remotely*: (1) all counsel and self-represented parties appearing for such hearings **must,** prior to 1:30 p.m. on Thursday, check-in online via the Court's civil video appearance website (link here); and (2) participants will then be prompted to join the courtroom's Zoom hearing session.

Local Rule 375(c): Attorneys **shall** comply with Local Rule 375(c) which governs "Decorum for In-Person and Remote Court Appearances." (Local Rule 375(c)) Specifically, the video and audio must be turned on and functioning during the hearing; and attorneys are expected to wear appropriate business attire.

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100	Palmer vs. Holmes, 23-01362888	(ROA 226) Plaintiff James Palmer ("Plaintiff" or "Mr. Palmer") will and hereby does move for an Order pursuant to CCP§ 2030.010 et. seq compelling Defendant Warren Holmes ("Defendant") to serve further, objection-free, code-compliant, verified responses to the first set of Requests for Production of Documents (the "RFPs") served on August 8, 2025, and to produce documents responsive to the RFPs. Mr. Palmer will further move this Court for monetary sanctions against Defendant pursuant to CCP sections 2023.010, 2023.030, and 2031.320. Mr. Palmer requests sanctions in the amount of $13,755.50, representing reasonable attorneys' fees and costs incurred as a result of Defendant's

		failure to serve timely (or any) responses to the RFPs to Mr. Palmer. (ROA 230) Plaintiff James Palmer moves for an Order pursuant to CCP 2030.010 et. seq compelling Defendant Warren Holmes to serve further, objection-free, code-compliant, verified responses to the first set of Form Interrogatories (the "FROGs") served on August 8, 2025. Plaintiff will further move this Court for monetary sanctions against Defendant pursuant to CCP§§2023.010, 2023.030, and 2030.290. Mr. Palmer requests sanctions in the amount of $10,729.50. Initially, the Court recalls that in its 7/2/2026 minute order (ROA 303) it stated, "…the Court notes that from October-December 2025 Plaintiff's counsel and Defendant attempted to work out a Stipulation and Protective Order with no resolution. (Decl. of Dhaliwal¶¶5-11.) Moreover, there are four more pending discovery motions on calendar in August 2026 and January 2027 (trial is 8/3/2026). The Court encourages the parties to continue their meet and confer efforts." To date, at least ten (10) discovery motions have been filed by the parties herein. These current motions, filed on 2/9/2026, are unopposed. Even so, 617 pages of documents have been filed in connection with these two motions. Notable, too, the parties could not agree on a basic protective order. (Dhaliwal Decl. ¶14.) The Unopposed Motions are granted. Failing to respond within the time limit waives most objections to the interrogatories (and RFPS), including claims of privilege and "work product" protection. [CCP § 2030.290(a); *see Leach v. Sup.Ct*. (Markum) (1980) 111 CA3d 902, 905-906.] Here, on August 8, 2025, Mr. Palmer served his first set of comprehensive written discovery (Dhaliwal Decl., ¶ 2, Exs. A-D.) Defendant's responses to the Discovery were due on September 9, 2025. Having received no responses, Mr. Palmer filed motions to compel the Discovery on October 1, 2025. (Id.) On October 9, 2025, after Mr. Palmer had already filed his Motions to Compel, Defendant served is "responses". To the extent the responses include objections, those objections have been waived.

		Furthermore, as these motions are unopposed, Defendant failed to sustain his burden to establish whatever facts are necessary to justify the objection(s). While the parties argued over a protective order and privilege log, Plaintiff fails to sustain his burden to show why those protections are necessary. Sanctions are warranted pursuant to CCP§§ 2023.010, 2023.030, and 2031.320, 2030.290. However, $24,485.00 for two discovery motions is overreaching. Court will allow 10 hours of time at $450 an hour. Defendant to provide further, code compliant, verified responses, without objections to Form Rogs (Set 1) and RFPS (Set 1) and within 20 days. Defendant to produce documents in response thereto within 20 days. Defendant to pay sanctions in the amount of $4500 within 20 days. *Plaintiff to give notice.*
101	Jimenez vs. Waste Management Collection and Recycling Inc., 24-01444106	Plaintiff SALVADOR JIMENEZ moves this Court for an order, pursuant to CCP§§ 2023.010–2023.040, 2025.230, 2025.450 2025.480, and 2031.310, compelling Defendant WASTE MANAGEMENT COLLECTION AND RECYCLING, INC. ("Defendant" or "WMCR") to designate, prepare, and produce its Person Most Qualified ("PMQ") for deposition and to produce documents, as follows: 1. To compel Defendant WMCR to designate, prepare, and produce one or more PMQ witnesses to testify regarding Matter Nos. 1 through 9 set forth in Plaintiff's Notice of Deposition; 2. To compel Defendant WMCR to produce documents responsive to Demand Nos. 1 through 16 set forth in Plaintiff's Notice of Deposition; and 3. For an order awarding monetary sanctions against Defendant and its attorneys of record, jointly and severally, in the amount of $5,330.00, for their misuse of the discovery process. Initially, CCP § 2025.450(b)(2) requires, "The motion shall be accompanied by a meet and confer declaration under Section 2016.040…." Specifically, CCP § 2016.040(a) provides, "A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion."

		The purpose of the meet and confer requirement is to force lawyers to reexamine their positions, and to narrow their discovery disputes to the irreducible minimum, before calling upon the court to resolve the matter. It also enables parties and counsel to avoid sanctions. [*Stewart v. Colonial Western Agency, Inc.* (2001) 87 Cal.App.4th 1006, 1016.] In this instance, the Declaration of Attorney Apodaca states, "On June 8, 2026, Defendant served its Response, asserting eleven 'General Objections' and boilerplate specific objections to every deposition topic and every document request, and refused to designate or produce any PMQ witness or any responsive document." (Decl. of Apodaca ¶4.) Thereafter, Attorney Apodaca sent two meet and confer emails on June 8, 2026 and June 12, 2026. (Id¶5,6, Ex. C, D.) Problematically, there was no attempt to meet and confer in person, telephonically, or via videoconference. Moreover, the emails do not suffice. Defendant objected to both the unilateral setting of the depo in addition to the Topics and RPDS. Yet, Plaintiff's Ex. C is a two-sentence request for a depo date. Similarly, Ex. D simply asks for dates, or it will file a motion. Conclusively, there was no attempt to narrow the issues down prior to filing this motion. Therefore, the Motion is DENIED without prejudice. Defendant's request for sanctions in the amount of $500 is also DENIED as unsupported. The Case Management Conference is continued to September 24, 2026 at 1:30 p.m. *Defendant to give notice*.
102	Gonzalez vs. The Tjx Companies Inc, 26-01544831	Defendant Thomasina Renee Gagnon ("Defendant") moves to strike the claim for punitive damages from the Complaint of plaintiff Otto Perez Gonzalez ("Plaintiff"). Plaintiff alleges that Defendant was operating a vehicle in the course and scope of her employment with the corporate defendants at a high rate of speed while using her cell phone when she crashed into Plaintiff's vehicle. Defendant argues the claim for punitive damages and supporting allegations must be stricken because the allegations of malice and oppression are insufficient and driving while using a cell phone is not oppressive, malicious, vile, or oppressive. Defendant further argues that Plaintiff's allegations against the corporate defendants are insufficient because Plaintiff has not made any factual allegations that any officers, directors, and managing agents had advanced knowledge that

		Defendant was unfit to drive and employed her with a conscious disregard of the rights or safety of others. Nonintentional torts may form the basis for punitive damages when the conduct constitutes conscious disregard of the rights or safety of others. (*Peterson v. Superior Court* (1982) 31 Cal.3d 147, 158.) "Nonintentional conduct comes within the definition of malicious acts punishable by the assessment of punitive damages when a party intentionally performs an act from which he knows, or should know, it is highly probable that harm will result. [Citations.]" (*Ibid*.) Here, the allegation that Defendant was operating her vehicle at a high rate of speed while using a cell phone could support a finding that she acted with conscious disregard of the rights or safety of others and that Defendant knew or should have known that it was highly probable that harm would result from her actions. Thus, the claim for punitive damages against Defendant is adequately alleged. As to the corporate defendants, who have already answered the Complaint, Defendant has no standing to move to strike the claim for punitive damages against them. Even if she did, the Complaint alleges that defendants' officers, directors, and managing agents employed Defendant while having advanced knowledge that Defendant was unfit to operate their vehicle and lacked proper training on the operation of vehicles and intentionally disregarded this knowledge in an effort to maximize profits. These allegations must be accepted as true at this stage and satisfy the statutory requirements for a claim for punitive damages against a corporate employer. Based on the above, the Motion to Strike is DENIED. Defendant is ORDERED to file an answer to the Complaint within 10 days of the date of this order. The Demurrer and Motion to Strike filed on 3/19/26 by Defendant seeking the same relief as the instant Motion to Strike and set for hearing on 10/1/26 are taken OFF CALENDAR. *Moving party to give notice.*
103	TBF Financial I, LLC vs. O'Connell, 24-01383167	<u>Motion to Strike</u> Defendant William R. O'Connell III ("Defendant") moves to strike the entirety of Plaintiff's Second Amended Complaint ("SAC") as against himself. On November 20, 2025, this Court sustained Defendant's unopposed demurrer to the First Amended Complaint with 20 days leave to amend. Plaintiff timely filed a SAC. However, Defendant is no longer named anywhere in the pleading. Defendant's name has been removed from the caption, and there are no allegations against him anywhere within the SAC.

		Plaintiff did not file an opposition to this motion. As this is the second pleading challenge that Plaintiff has failed to oppose, and there are no allegations against Defendant, the Court GRANTS Defendant's motion to strike the entirety of the SAC as to William R. O'Connell III, an individual, without leave to amend. <u>Motion to Dismiss</u> In light of this Court's ruling on the motion to strike, the Motion to Dismiss is MOOT. The Case Management Conference is continued to September 10, 2026 at 1:30 p.m. *Moving Defendant to prepare a judgment of dismissal and to give notice.*
104	Dunchok vs. AIC Owner, LLC, 25-01489145	Defendants AIC Owner LLC and Sarah Tolentino ("Defendants") move pursuant to Code of Civil Procedure section 425.16(c)(1) for $22,836.50 in attorneys' fees and $123.54 in costs, for a total award of $22,960.04. Plaintiff James M. Dunchok ("Plaintiff"), proceeding in pro per, opposes the motion. Plaintiff asks the Court to deny the "motion in its entirety or, in the alternative, award only a nominal amount of fees apportioned solely to the successful portions of the Anti-SLAPP motion." First, Defendants request for judicial notice of the Minute Order on Defendants' anti-SLAPP Motion entered by the Court in this action on March 9, 2026 is GRANTED. Code of Civil Procedure section 425.16 is the anti-SLAPP motion statute. Section 425.16(c) discusses attorney's fees following an anti-SLAPP motion. Section 425.16(c) states: "(c)(1) Except as provided in paragraph (2), in any action subject to subdivision (b), a prevailing defendant on a special motion to strike shall be entitled to recover that defendant's attorney's fees and costs. If the court finds that a special motion to strike is frivolous or is solely intended to cause unnecessary delay, the court shall award costs and reasonable attorney's fees to a plaintiff prevailing on the motion, pursuant to Section 128.5. (2) A defendant who prevails on a special motion to strike in an action subject to paragraph (1) shall not be entitled to attorney's fees and costs if that cause of action is brought pursuant to Section 11130, 11130.3, 54960, or 54960.1 of the Government Code, or pursuant to Chapter 2 (commencing with Section 7923.100) of Part 4 of Division 10 of Title 1 of the Government Code. Nothing in this paragraph

		shall be construed to prevent a prevailing defendant from recovering attorney's fees and costs pursuant to Section 7923.115, 11130.5, or 54960.5 of the Government Code." (Code Civ. Proc., § 425.16, subd. (c).) "The anti-SLAPP statute entitles a prevailing anti-SLAPP movant in most cases to recover his or her attorney fees and costs as of right." (*Catlin Ins. Co., Inc. v. Danko Meredith Law Firm, Inc.* (2022) 73 Cal.App.5th 764, 773, review denied (Apr. 13, 2022); *Tukes v. Richard* (2022) 81 Cal.App.5th 1, 16 ["[T]he statutory predicate for a fee award under the anti-SLAPP statute is that the defendant prevailed on its motion."].) "The term 'prevailing party' must be 'interpreted broadly to favor an award of attorney fees to a partially successful defendant.' " (*City of Colton v. Singletary* (2012) 206 Cal.App.4th 751, 782.) "However, a fee award is not required when the motion, though partially successful, was of no practical effect." (*Ibid*.) "[A] party who partially prevails on an anti-SLAPP motion must generally be considered a prevailing party unless the results of the motion were so insignificant that the party did not achieve any practical benefit from bringing the motion." (*Ibid*.) "The determination whether a party prevailed on an anti-SLAPP motion lies within the broad discretion of [the] trial court.'" (*Ibid*.) Unless the results of the anti-SLAPP Motion were so insignificant that defendant achieved no "practical benefit" from it, partial success entitles a defendant to attorney's fees. (*Mann v. Quality Old Time Service, Inc.* (2006) 139 Cal.App. 4th 329, 340 (Mann); *Moran v. Endres* (2006) 134 Cal.App.4th 952, 954.) Moreover, "[t]he anti-SLAPP fee award statute applies only to those fees incurred in connection with the anti-SLAPP motion (including a related motion for fees and costs), not those incurred in other aspects of the action." (*Tukes v. Richard* (2022) 81 Cal.App.5th 1, 15.) Once the Court determines that the party moving for fees is the prevailing party, the Court must determine the amount of fees to award. "A trial court has discretion to award less than the fee amount requested where work performed was duplicative." (*Tukes v. Richard* (2022) 81 Cal.App.5th 1, 16.) "[C]ourts repeatedly have stated that the trial court is in the best position to value the services rendered by the attorneys in his or her courtroom." (*Tukes v. Richard* (2022) 81 Cal.App.5th 1, 17.) "It is well settled that the trial courts are to use the lodestar method when determining an award of attorney fees under

		the anti-SLAPP statute." (*Frym v. 601 Main Street LLC* (2022) 82 Cal.App.5th 613, 620.) "This approach ensures that the trial court's analysis is objective and that the amount awarded is not arbitrary. (*Id*. at 620–621.) "Under the lodestar method, the trial court 'tabulates the attorney fee touchstone, or lodestar, by multiplying the number of hours reasonably expended by the reasonable hourly rate prevailing in the community for similar work.' " (*Id*. at 621.) "The lodestar figure 'may be increased or decreased depending on a variety of factors, including the contingent nature of the fee award.' " (*Frym v. 601 Main Street LLC* (2022) 82 Cal.App.5th 613, 621.) "Indeed, the trial court has discretion to determine the amount of reasonable fees to award based on 'a consideration of such factors as the nature of the litigation, the complexity of the issues, the experience and expertise of counsel and the amount of time involved. [Citation.] The court may also consider whether the amount requested is based upon unnecessary or duplicative work.' " (*Ibid*.) Notably, "[a]nti-SLAPP motions are ' intended to resolve quickly and relatively inexpensively meritless lawsuits that threaten free speech on matters of public interest.'" (*Catlin Ins. Co., Inc. v. Danko Meredith Law Firm, Inc*. (2022) 73 Cal.App.5th 764, 773, review denied (Apr. 13, 2022).) Here, the Court finds that Defendants partially prevailed on their anti-SLAPP motion. The Court granted the anti-SLAPP motion as to the first cause of action based on threatening legal action in 2022, an alleged misrepresentation after serving the five-day notice, entering the property as part of the five-day notice and prior to commencing eviction proceedings, and pursuing eviction as well as the second cause of action for frustration of purpose in leasing property and intentional interference with prospective economic advantage and third cause of action for wrongful eviction, which were based on the same or similar protected communications in connection with an ongoing dispute and in anticipation of litigation. (ROAs 36 and 38.) Defendants' motion was denied, however, as to first cause of action for breach of implied covenant based on the alleged failure to renegotiate as promised and the failure to repair the leaking roof. With the remaining cause of action for breach of implied covenant based on the alleged failure to renegotiate as promised and the failure to repair the leaking roof, Plaintiff's possibility for recovery against Defendants remains. Although, the scope of the facts at issue are now narrowed after the anti-SLAPP motion and Plaintiff has less bases for the relief requested.

		Now that the Court has determined that Defendants are a partially prevailing party, the Court must determine the amount of fees to award pursuant to the lodestar method. Defendants requests $22,836.50 in attorneys' fees and $123.54 in costs. The Court finds the $123.54 in costs reasonable and the Court GRANTS the motion as to the $123.54 in costs. However, the Court finds that Defendants not entitled to the full $22,836.50 in attorneys' fees requested as Defendants were only partially the prevailing party. The Court will reduce the fees associated with "[r]esearch and analysis of anti-SLAPP law as applied to Plaintiff's claims" and "[d]rafting, filing and serving the anti SLAPP Motion and supporting documents" by 1/3 since Defendants succeeded in striking two of the three causes of action. Defendants failed to provide a sufficiently detailed breakdown of the work performed for the fees incurred and therefore the Court is unable to decipher and analyze whether the time expended or the monetary charge being made for the time expended are reasonable under the circumstances. For example, Defendants provided a blocked-bill of 25.2 hours by Brian Bauer and 3.3 hours by Nicholas Shantar for "Drafting, filing and serving the anti SLAPP Motion and supporting documents." As such, the fees will be reduced by 9.3 at $495/hour ($4,603.50) and 1.1 at $475/hour ($522.50) for a total reduction of $5,126. The motion for attorney fees is therefore GRANTED in the amount of $17,710.50 in attorney fees and $123.54 in costs. *Defendants to give notice.*
105	Clicktide Digital Corporation vs. VPP Technologies, Inc, 25-01521849	*Off-calendar.*
106	Harris vs. City of Irvine, 25-01529084	Respondents City of Irvine, Irvine Police Department, Kailene Loza, in her official capacity as Lead Records Specialist, and Adrianna Medina, in her official capacity as Program Specialist ("Respondents") demur to the Petition for Writ of Mandate filed by petitioner Sonia Patricia Harris ("Petitioner") for failure to state a cause of action. As an initial matter, the Court notes that Respondents' moving papers were served on Petitioner by electronic service only. As a pro se litigant, papers must be served on Petitioner by mail unless Petitioner affirmatively agrees otherwise. Because Petitioner has filed a timely, substantive opposition to the moving papers, the Court finds any

		deficiencies with service waived. However, the failure to properly serve papers in the future may result in a motion being denied or taken off calendar, as appropriate. Further, the Court notes that Petitioner's opposition is not accompanied by a proof of service. Petitioner is advised that all future filings requiring service should be accompanied by a proof of service, when required. *First Cause of Action for Writ of Mandate* Respondents argue this cause of action fails because the only records sought that have not been produced are exempt investigatory files related to a domestic violence incident, which is shown on the face of the Petition and exhibits attached to Respondents' Request for Judicial Notice (RJN). Petitioner alleges that she submitted a California Public Records Act (CPRA) request on September 24, 2025. In an October 16, 2025 response, Respondent Loza claimed that certain requested records require a subpoena and the statutory deadline for production passed with no full production made. Further, Petitioner alleges that Respondent Loza represented on November 5 that the date range of the records searched was from June 21-24 but Petitioner was seeking records from June 23-30 and this shows that Respondents failed to conduct a proper search. The CPRA "does not require the disclosure of records of complaints to, or investigations conducted by, or records of intelligence information or security procedures of, the office of the Attorney General and the Department of Justice, the Office of Emergency Services and any state or local police agency, or any investigatory or security files compiled by any other state or local police agency, or any investigatory or security files compiled by any other state or local agency for correctional, law enforcement, or licensing purposes." (Gov. Code, § 7923.600(a).) Respondents' argument that all withheld records fall within the exemption under section 7923.600 depends upon issues beyond the face of the Petition and the documents submitted in the RJN. For instance, the exemption requires a showing that the withheld records relate to an investigation conducted by one of the enumerated entities, which requires consideration of evidence beyond the Petition. Further, Respondents have shown that a misdemeanor complaint has been filed against Petitioner as the result of an April 19, 2025 incident but whether that incident relates to the incident at Petitioner's residence for which the records are sought also requires consideration of evidence beyond the Petition. Therefore, Respondents' attack of the first cause of action fails and the Demurrer to the first cause of action is OVERRULED.

Second Cause of Action for Failure to Provide Timely Determination
Respondents argue this cause of action fails because Petitioner concedes that a timely initial determination was provided on October 16 and, in any event, a comprehensive response was provided on November 28 before the Petition was filed, rendering the allegations moot.

Petitioner alleges that Respondents violated section 7922.535 of the CPRA by failing to provide a determination within 10 days. However, section 7922.535(b) provides that the 10 day period may be extended by up to 14 days. Exhibit 4 to the Petition shows that notice of a 14-day extension was provided to Petitioner on October 3. This exhibit shows that Respondents could not have violated the CPRA by failing to provide a determination within 10 days of the request. Thus, the allegations fail to state a viable cause of action and the Demurrer to the second cause of action is SUSTAINED with 20 days leave to amend.

Third Cause of Action for Failure to Provide Withholding Index
Respondents contend this cause of action fails because the CPRA does not require the creation of a withholding index. Petitioner does not dispute that Respondents have no obligation to create an inventory of potentially responsive records as a matter of course. Thus, this cause of action, which alleges that Respondents have violated the CPRA by failing to provide a withholding index which identifies each record and cites to specific exemptions with an explanation as to how the exemptions apply, fails to state sufficient facts and the Demurrer to the third cause of action is SUSTAINED with 20 days leave to amend.

Fourth Cause of Action for Failure to Conduct a Reasonable Search
Respondents argue the exhibits attached to the Petition demonstrate that multiple searches in good faith were conducted with the corrected dates provided by Petitioner.

Petitioner alleges that her initial request sent on September 24 identified an appearance in family court by Officer Lerma on June 23 and a CVS encounter in the week of June 21. However, her September 27 amended request corrected those dates to June 30 and the week of June 23-30, respectively. Despite her amended request and multiple corrections, Petitioner alleges that Respondents repeatedly searched the incorrect date ranges.

Exhibits 6 and 19 to the Petition show that records relating to Officer Lerma's June 30 appearance in family court were produced to Petitioner in response to the request. Further, exhibit 19 shows that the City performed a search for records

		with the revised date range (the week of June 23) and the search returned zero results. These exhibits belie Petitioner's allegations that Respondents continued to use the incorrect dates in their search for records. Thus, this cause of action fails and the Demurrer to the fourth cause of action is SUSTAINED with 20 days leave to amend. *Fifth Cause of Action for Unlawful Use of Non-Existence "Subpoena Requirement"* Respondents argue they did not impose any subpoena requirement as a reason for withholding records and the records were instead withheld as exempt investigatory files. The Petition alleges that, contrary to the CPRA, Respondents claimed that Petitioner must seek a subpoena, this was a legal misrepresentation, and Respondents' withholding is improper. While the exhibits attached to the Petition show that Petitioner was advised that a subpoena would be required for obtaining the requested audio, video recordings, and/or 911 phone call recordings, exhibit 19 makes it clear that these records were ultimately withheld pursuant to Respondents' claim of the investigatory exemption. Because no documents were withheld pursuant to any unlawful subpoena requirement, this cause of action fails and the Demurrer to the fifth cause of action is SUSTAINED with 20 days leave to amend. *Sixth Cause of Action for Declaratory Relief* Respondents argue this cause of action fails because the claim has fully matured, Petitioner's various causes of action show that she has adequate legal remedies, and the cause of action is unnecessary and duplicative. Petitioner's declaratory relief cause of action does not fail merely because she has a fully matured claim under the CPRA, as "the CPRA authorizes declaratory relief in at least some circumstances in which an agency already has disclosed all nonexempt records responsive to a records request." (*City of Gilroy v. Superior Court* (2026) 19 Cal.5th 38, 54.) This includes "situations in which an agency is reasonably likely to repeat past conduct that allegedly violates the CPRA in response to future records requests." (*Ibid*.) Further, the fact that Petitioner has other legal remedies does not foreclose a declaratory relief cause of action. (*Osseous Technologies of America, Inc. v. DiscoveryOrtho Partners LLC* (2010) 191 Cal.App.4th 357, 364 [" 'The mere circumstance that another remedy is available is an insufficient ground for refusing declaratory relief, and doubts regarding the propriety of an action for declaratory relief . . . generally are resolved in favor of granting relief.' "].) Therefore, Respondents' arguments fail and the Demurrer to the sixth cause of action is OVERRULED.

		Seventh Cause of Action for Injunctive Relief Respondents contend this cause of action fails because it is redundant, given that the CPRA explicitly authorizes a petitioner to seek a writ of mandate to compel the inspection of public records, and it is uncertain. Demurrers for uncertainty "are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond." (*Lickiss v. Fin. Indus. Regulatory Auth*. (2012) 208 Cal.App.4th 1125, 1135.) Here, the Petition is not incomprehensible. Thus, the Demurrer based on uncertainty is OVERRULED. However, "[i]njunctive relief is a remedy, not a cause of action. [Citations.] A cause of action must exist before a court may grant a request for injunctive relief." (*Allen v. City of Sacramento* (2015) 234 Cal.App.4th 41, 65.) Thus, Petitioner's seventh cause of action is improper. Rather than asserting a separate cause of action for injunctive relief, Petitioner may obtain the requested injunction if she prevails on her first cause of action for violation of the CPRA. Thus, the Demurrer to the seventh cause of action is SUSTAINED without leave to amend. *Eighth Cause of Action for Statutory Penalties and Sanctions* Respondents argue this cause of action misstates the remedies available under Government Code section 7923.15, which does not provide for a separate cause of action. Respondents further argue that Petitioner is not entitled to recover attorney's fees as a pro se litigant. Section 7923.15 provides that a requester who prevails in litigation shall be awarded costs and reasonable attorney's fees. While Petitioner may be entitled to an award of costs if she prevails in this litigation, this is a remedy and not a separate cause of action. Thus, the Demurrer to the eighth cause of action is SUSTAINED without leave to amend. The Case Management Conference is continued to October 22, 2026 at 1:30 p.m. *Moving party to give notice.*
107	Holl vs. ADK Bancorp, Inc., 22-01257212	*Call Clerk for Tentative Ruling*
108	Falevich vs. Hyundai Motor America, 26-01564960	Defendant Hyundai Motor America ("Defendant") moves to compel arbitration pursuant to arbitration agreements contained in Plaintiff's Owner's Handbook & Warranty Information and the Bluelink Connected Services Agreement. Plaintiffs Vladislav Falevich and Olga Falevich ("Plaintiffs") oppose the motion.

The Motion is DENIED.

Plaintiffs' claims are brought pursuant to statute and are not rooted in contract. Defendant has failed to demonstrate the agreements in the owner's handbook or Bluelink Connected Services Agreement cover Plaintiffs' claims in this case. While the arbitration agreements purports to cover any and all disputes between the parties regarding "[Plaintiff's] Vehicle"—the scope of an arbitration clause turns on whether the claims are "rooted" in the contractual relationship between the parties. (*Ahern v. Asset Management Consultants, Inc.* (2022) 74 Cal.App.5th 675, 692-693.) "[E]ven under a very broad arbitration provision, such as 'any controversy or claim arising out of or relating to this agreement,' " the subject claims must " 'have their roots in the relationship between the parties which was created by the contract' before they can be deemed to fall within the scope of the arbitration provision." (*Rice v. Downs* (2016) 248 Cal.App.4th 175, 188.)

In *Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122, the Supreme Court noted that Song-Beverly disputes do not flow from the contract between the parties but rather "from obligations imposed by statute" and that such disputes "are not intimately founded in or intertwined with the sales contracts." (*Id*., at p. 1126.) Here, the complaint only contains causes of action brought pursuant to the Song-Beverly Act. Thus, they do not flow from the contract between the parties but rather from obligations imposed by statute.

The Motion to Compel Arbitration is DENIED.

Defendant shall provide a responsive pleading no later than 15 Court days after notice of this ruling.

In addition, because this action was filed on April 23, 2026, the parties shall conduct this action pursuant to the procedures and timeline set forth in Code of Civil Procedure section 871.26. (Code Civ. Proc., § 871.26.) At the hearing, the parties shall be prepared to discuss their current compliance and plans to comply with Code of Civil Procedure section 871.26.

The unopposed request for judicial notice is GRANTED.

The Case Management Conference is continued to October 1, 2026 at 1:30 p.m.

Plaintiffs to give notice.

109	Presley vs. Defense International Corporation, 25-01473406	Plaintiff JEREMIAH PRESLEY ("Plaintiff") will and hereby does move this Court for an order: (1) setting aside and vacating the dismissal entered in this action on March 4, 2026; and (2) enforcing the settlement agreement reached by the parties on December 8, 2025, and further confirmed in writing by Defendant's counsel on December 23, 2025, and entering judgment thereon in the amount of $8,000.00. Initially, the court has power under CCP § 473(b) to vacate a voluntary dismissal entered as a result of “mistake, inadvertence, surprise, or excusable neglect”. [*Zamora v. Clayborn Contracting Group, Inc*. (2002) 28 Cal.4th 249, 254-255.] Relief is mandatory only from those dismissals which are the “procedural equivalent of a default”; i.e., those which deprive plaintiffs of their day in court. [*See Leader v. Health Indus. of America, Inc*. (2001) 89 Cal.App.4th 603, 618.] However, CCP § 473(b) was never intended to be a “catch-all remedy for every case of poor judgment on the part of counsel which results in dismissal.” [*Gotschall v. Daley* (2002) 96 Cal.App.4th 479, 483-484.] Here, Attorney Ahn declares: “10. On March 4, 2026, I filed a Request for Dismissal in this action. This filing was the product of my own inadvertent mistake. At the time of filing, I had before me Defendant's express written confirmation of all material settlement terms on December 23, 2025, Mr. Afoh-Manin's February 2, 2026 representation that the agreement had been reviewed and that he would confirm his client was "good to sign," and his February 13, 2026 representation that he would follow through. Based on these representations and my good-faith, though mistaken, belief that execution and payment were imminent, I filed the dismissal. I did not intend to relinquish Plaintiff's rights under the settlement agreement or to release Defendant from its payment obligation. The filing was not a deliberate or tactical decision. It was inadvertent error on my part, and on my part alone.” In this instance, the dismissal was a result of counsel voluntarily filing a Notice of Dismissal. It is not the procedural equivalent of a default; and therefore, relief is not mandatory; but rather, discretionary. To that end, it is unclear why Attorney Ahn would file a Notice of Dismissal on 3/4/2026, when, Defendant had already missed the first payment of the alleged payment plan, which was due on 2/28/2026. [Decl. of Ahn ¶9.]

		Nevertheless, it appears Attorney Ahn filed the dismissal on the mistaken belief that a settlement had been secured. Based on this representation of error, the Motion to Vacate Dismissal is GRANTED. As to Moving Party's request to enforce the settlement agreement, "[W]here the plaintiff has filed a voluntary dismissal of an action …, the court is without jurisdiction to act further …, and any subsequent orders of the court are simply void." [. (2007) 149 CA4th 83, 89, 56 CR3d 746, 750 (internal quotes omitted)] The exception to this rule is where a signed, written settlement agreement (or oral settlement before the court) states the court retains jurisdiction to enforce the settlement. [See CCP §664.6.] However, there is no evidence of an agreement for continuing jurisdiction. Furthermore, Plaintiff has not established that the parties stipulated to a settlement either orally before the court, or in a writing signed by the parties or their counsel outside Court. [CCP §664,6(a),(b).] Rather, while counsel seemingly sent emails back and forth pertaining to settlement, there is no evidence of a writing signed by the parties or their counsel herein. [Decl. of Ahn, Ex. A, B.] Therefore, the Motion to Enforce the Settlement is DENIED. *Moving party to give notice.*
110	Westcoast Therapy, Inc. vs. Xavier, 22-01256587	<u>Motion to Compel Arbitration</u> Defendant, Angelica Xavier, in pro per ("Defendant"), moves for an order compelling binding arbitration pursuant to Code of Civil Procedure section 1281.2 and staying all proceedings pending completion of arbitration pursuant to Code of Civil Procedure section 1281.4. The initial hearing on this motion was continued to allow Defendant time to file a sur-reply in response to Plaintiff's late-filed opposition. The Court has now reviewed and considered all briefing on this motion, including Defendant's sur-reply. *Merits* Defendant contends that this action arises from contracts that require mediation as a condition precedent and, if mediation fails, binding arbitration, and that despite mandatory ADR provisions, Plaintiff, Westcoast Therapy, Inc. ("Plaintiff"), initiated litigation rather than mediation or

		arbitration, and thereby breached the ADR provisions. Defendant asserts that she did not waive the right to arbitration. Plaintiff contends that the parties entered into three (3) separate agreements, only one of which contains an arbitration provision; that the arbitration provision is unenforceable; and that even if it were enforceable, it would be enforceable only as to the Confidentiality and Proprietary Rights Agreement. Plaintiff also asserts that the law of this case has already been established as this Court has ruled on the issue of arbitration and determined that Defendant waived the right to arbitrate in March of 2025 when the Court denied Defendant's motion to dismiss. Plaintiff additionally asserts that the statute of limitations has run as Defendant filed this motion on May 6, 2026, more than four years after Plaintiff last refused to arbitrate on April 28, 2022. Lastly, Plaintiff contends that assuming the law of the case has not been established, which it has, and assuming that the statute of limitations has not run, which it has, and assuming that the all three (3) agreements contained an arbitration provision, which they do not, and finally assuming that the arbitration provision in the Confidentiality Agreement was enforceable, which it is not, Defendant has still waived her right to arbitrate. *Existence of Agreement to Arbitrate* Here, Defendant has shown, and Plaintiff does not dispute, that an agreement to arbitrate exists in an agreement entitled, "Confidentiality and Proprietary Rights Agreement (California)" (the "Confidentiality Agreement"). (Ex. 1 to Motion, Confidentiality Agreement.) The Confidentiality Agreement states, in part: "2. Dispute Resolution. Upon the occurrence of any dispute or disagreement the Parties hereto arising out of or in connection with any term or provision of this Agreement, the subject matter hereof, or the interpretation or enforcement hereof (in each case, a "Dispute"), the Parties shall engage in informal, good faith discussions and attempt to resolve the Dispute during a period of ten (10) Business Days after a Party (the "Plaintiff") notifies the other Party (the "Defendant") of such Dispute in writing. If the Parties are unable to resolve the Dispute during such period, then the Parties shall comply with the following dispute resolution procedures: "(a) Mediation. [¶.] "(b) Arbitration. If the Parties are unable to resolve the Dispute pursuant to Section 2(a) above, then the Parties shall submit the Dispute to final and binding arbitration in Los Angeles, California, administered by JAMS, or it successor, in

		accordance with the rules and procedures of JAMS then in effect, within ten (10) Business Days after conclusion of the mediation contemplated in Section 2(a) above. The Parties agree that any and all Disputes that are submitted to arbitration in accordance with this Agreement shall be decided by a neutral arbitrator who is a retired judge or attorney licensed to practice law and who is experienced in complex commercial transactions . . . ." (Ex. 1 to Motion, Confidentiality Agreement, § 2(a)-(b).) However, based on the allegations in the Complaint, that is not the only agreement between the parties that is at issue in this action. The Complaint alleges that there are three (3) agreements: X Brands Asset Purchase Agreement ("XB APA"), that Good Bites Asset Purchase Agreement ("GB APA") and that Confidentiality and Proprietary Rights Agreement ("Confidentiality Agreement"). (Complaint, ¶ 10.) Plaintiff's counsel provides that XB APA and GB APA do not contain arbitration provisions. (Declaration of Shanon Slack ("Slack Decl."), ¶ 4.) Defendant does not show that any of Plaintiff's claims in this action fall within the scope of the arbitration clause in the Confidentiality Agreement, nor does Defendant address the XB APA and GB APA relative to the Confidentiality Agreement. Therefore, Defendant does not meet her burden to show the existence of an arbitration agreement that encompasses the claims in this action. Even assuming that Defendant did meet this burden, Defendant's motion to compel arbitration is untimely, and she has waived her right to arbitrate, as discussed below. *Statute of Limitations* Plaintiff contends that the statute of limitations has run, and that a petition to compel arbitration must be brought within four years after the party to be compelled has refused to arbitrate, citing to *Wagner Construction Co. v. Pacific Mechanical Corp*. (2007) 41 Cal.4th 19. The California Supreme Court in *Wagner Construction Co. v. Pacific Mechanical Corp.* (2007) 41 Cal.4th 19 explained as follows: "A petition to compel arbitration must be brought within four years after the party to be compelled has refused to arbitrate. [Citation.] This rule has nothing to do with the statute of limitations on the underlying claims. Instead, the rule reflects our understanding that a petition to compel arbitration states a separate cause of action subject to its own limitation period. As we have explained, ' [a]n action to compel arbitration "is in essence a suit in equity to compel specific performance of a contract" ' and is, thus, subject to the four-year statute of limitations for actions founded upon written contracts. [Citations.]" (*Wagner Construction Co. v. Pacific Mechanical Corp.* (2007) 41 Cal.4th 19, 29.) "Under section 1281.2, 'a party to an agreement to arbitrate may not

		bring an action to compel specific performance of the arbitration provision until he or she can allege not only the existence of the agreement, but also that the opposing party refuses to arbitrate the controversy. Therefore, it appears that a cause of action to compel arbitration does not accrue until one party has refused to arbitrate the controversy.' [Citation.]" (*Ibid*.) Although Defendant filed a motion to compel arbitration, as opposed to a petition to compel arbitration, there is no basis for treating a motion different from a petition. Applying the above rules to Defendant's motion to compel arbitration, Defendant's action to compel Plaintiff to arbitrate accrued on April 28, 2022, when Plaintiff refused to arbitrate, and Defendant filed the instant motion to compel arbitration on May 6, 2026, more than four years after Plaintiff refused to arbitrate. (Slack Decl., ¶ 4.) As a result, Defendant's motion to compel was untimely under the applicable statute of limitations. *Law of the Case* Plaintiff contends that the law of case has already been established as this Court has ruled on the issue of arbitration and determined that Defendant waived the right to arbitrate. " 'The doctrine of "law of the case" deals with the effect of the first appellate decision on the subsequent retrial or appeal: The decision of an appellate court, stating a rule of law necessary to the decision of the case, conclusively establishes that rule and makes it determinative of the rights of the same parties in any subsequent retrial or appeal in the same case.' [Citation.]" (*Morohoshi v. Pacific Home* (2004) 34 Cal.4th 482, 491.) A prior ruling by this Court does not implicate the law of the case doctrine as it is not an appellate decision, nor is this motion part of a retrial or appeal. In fact, a trial court has the inherent power to reconsider its own interim rulings. (*Le Francios v. Goel* (2005) 35 Cal. 4th 1094, 1108; *Golden Door Properties, LLC v. Superior Court of San Diego County* (2020) 53 Cal.App.5th 733, 788; *In re Marriage of Barthold* (2008) 158 Cal. App. 4th 1301, 1307-08.) "Even without a change of law, a trial court may exercise its inherent jurisdiction to reconsider an interim ruling. [Citation.]" (*Pinela v. Neiman Marcus Group, Inc*. (2015) 238 Cal.App.4th 227, 237.) Based on the foregoing, Plaintiff fails to show that the law of the case doctrine applies in this case and/or dictates the ruling on Defendant's instant motion to compel arbitration. *Waiver* Plaintiff contends that Defendant has still waived her right to arbitrate as this action was filed on April 26, 2022, and Defendant was aware of her right to arbitrate the Confidentiality Agreement as early as August 1, 2021, when

		the agreement was executed, and no later than April 28, 2022, when Defendant's then counsel, Matthew Urbach, contacted Plaintiff's counsel regarding arbitration, but has acted in a manner that suggested that she did not intend to invoke her purported right to arbitrate. Separate from the statute of limitation for a petition to compel arbitration, a party may not postpone arbitration indefinitely by delaying the demand. (*Wagner Construction Co. v. Pacific Mechanical Corp.* (2007) 41 Cal.4th 19, 29.) "[A] party may waive the right to compel arbitration by failing to demand arbitration within a time limit specified for that purpose in a statute. [Citations.] A party may also waive the right to compel by failing to comply with a time limit for demanding arbitration specified in the contract. [Citation.]" (*Id*. at p. 30.) "When no time limit for demanding arbitration is specified, a party must still demand arbitration within a reasonable time. [Citation.] This rule is an application of the general principle of contract law articulated in Civil Code section 1657, to the effect that, '[i]f no time is specified for the performance of an act required to be performed, a reasonable time is allowed.' [Citation.] '[W]hat constitutes a reasonable time is a question of fact, depending upon the situation of the parties, the nature of the transaction, and the facts of the particular case.' [Citation.]" (*Ibid*.) "[I]n determining whether a party to an arbitration agreement has lost the right to arbitrate by litigating the dispute, a court should treat the arbitration agreement as it would any other contract, without applying any special rules based on a policy favoring arbitration. That is, courts should apply the same procedural rules that they would apply to any other contract. [Citation.]" (*Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 583 ("Quach").) Determining whether a party has lost its right to compel arbitration as a result of its litigation-related conduct is governed by generally applicable state law contract principles, and these principles do not require a showing of prejudice to establish waiver. (*Ibid*.) "To establish waiver under generally applicable contract law, the party opposing enforcement of a contractual agreement must prove by clear and convincing evidence that the waiving party knew of the contractual right and intentionally relinquished or abandoned it. [Citations.]" (*Quach, supra*, 16 Cal.5th at p. 584.) "Under the clear and convincing evidence standard, the proponent of a fact must show that it is 'highly probable' the fact is true. [Citation.] The waiving party's knowledge of the right may be 'actual or constructive.' [Citation.]" (*Ibid*.) "Its intentional relinquishment or abandonment of the right may be proved by evidence of words expressing an intent to relinquish the right or of conduct that is so inconsistent with an intent to enforce the

		contractual right as to lead a reasonable factfinder to conclude that the party had abandoned it. [Citation.]" (*Ibid*.) "The waiver inquiry is exclusively focused on the waiving party's words or conduct; neither the effect of that conduct on the party seeking to avoid enforcement of the contractual right nor that party's subjective evaluation of the waiving party's intent is relevant. [Citations.]" (*Id*. at p. 585) "This distinguishes waiver from the related defense of estoppel, 'which generally requires a showing that a party's words or acts have induced detrimental reliance by the opposing party.' [Citations.]" (*Ibid*.) "To establish waiver, there is no requirement that the party opposing enforcement of the contractual right demonstrate prejudice or otherwise show harm resulting from the waiving party's conduct. [Citations.]" (*Ibid*.) "Although a written agreement to arbitrate an existing or future dispute is generally enforceable, a petition to compel arbitration will be denied when the right has been waived by the proponent's failure to properly and timely assert it. [Citations.]" (*Guess?, Inc. v. Superior Court* (2000) 79 Cal.App.4th 553, 557 [finding right to arbitrate was waived where defendant knew about the arbitration provision since before the right to arbitrate as an affirmative defense, acted inconsistently with the right to arbitrate as it fully participated in the discovery process, and caused prejudice to plaintiff].) "At a minimum, the failure to plead arbitration as an affirmative defense is an act inconsistent with the later assertion of a right to arbitrate." (*Id*. at p. 558.) Here, Defendant submits a declaration stating, "[f]rom the beginning of this case, I raised mediation and arbitration in communications, pleadings, and court proceedings." (Declaration of Angelica Xavier, ¶ 3.) Defendant also states, "I did not intentionally waive my right to arbitration. Any delay occurred during the COVID-19 pandemic while I was self-represented and suffering from traumatic brain injuries caused by multiple serious motor vehicle accident." (*Id*., ¶ 5.) Defendant additionally states, "[a]t no point during the Case Management Conference on March 6, 2025, or any other hearing, did I state that I preferred a jury trial over arbitration; I was simply following the court's procedural scheduling while continuing to seek ADR." (*Id*., ¶ 4.) The motion attaches exhibits includes Defendant's motion to set aside default and default judgment filed on March 23, 2023, where Defendant references that the Confidentiality Agreement requires the parties to first mediate and if unsuccessful, then proceed to JAMS Arbitration; Defendant's Answer dated March 18, 2023, stating that Defendant "reserves the right to file an Amended Answer should this Court deny her forthcoming motions for JAMS Mediation and Arbitration if necessary;" and a Minute Order dated

		September 29, 2022, for a Case Management Conference indicating that Defendant requested to attend mediation. (Exs. 3-5 to Motion.) Defendant also attaches a Minute Order dated March 6, 2025, for a Case Management Conference where a jury trial was scheduled. (Ex. 7 to Motion.) The foregoing shows that Defendant made no mention of arbitration at the September 29, 2022, Case Management Conference, and that Defendant subsequently raised the issue of arbitration in March 2023. The problem, however, is that Defendant never moved to compel arbitration, or otherwise took any action to compel arbitration. Notably, Plaintiff's counsel provides that on April 28, 2022, Plaintiff's counsel was contacted by Matthew Urbach, Esq., Defendant's then-counsel, and that Plaintiff's counsel informed Mr. Urbach that Plaintiff refused to arbitrate. (Slack Decl., ¶ 4; see Ex. 8 to Motion.) Thereafter, on July 29, 2022, Plaintiff's counsel informed Mr. Urbach that Plaintiff was willing to move forward with arbitration, and subsequently provided Mr. Urbach with the names of five (5) different mediators, but that neither Mr. Urbach nor Defendant ever followed up with Plaintiff's counsel regarding arbitration or mediation. (Id., ¶ 5.) Despite the fact that Defendant may have raised the issue of arbitration in 2022 and March 2023, Defendant never sought to compel arbitration, and did not follow up with Plaintiff's counsel in July 2022 when Plaintiff's counsel informed Defendant's then-counsel that Plaintiff was willing to arbitrate. Defendant did not properly seek to compel arbitration until Defendant filed this motion on May 6, 2026, more than four (4) years after Defendant requested arbitration in April 2022. To the extent that Defendant's motion to dismiss that was filed on March 11, 2025, could be construed as an attempt to compel arbitration, Defendant waited nearly three (3) years after Plaintiff informed Defendant's then-counsel on April 28, 2022, that Plaintiff refused to arbitrate to file that motion. The failure to seek to compel arbitration for years despite Defendant's knowledge of the arbitration provision in the Confidentiality Agreement constitutes conduct that is inconsistent with an intent to enforce the right to arbitrate so as to lead to the conclusion that Defendant has abandoned the right to arbitrate. Thus, the evidence indicates that Defendant has waived the right to arbitrate. Based on the foregoing, Defendant's motion to compel arbitration is DENIED. *Plaintiff to give notice.*

Motion for Summary Judgment

Plaintiff Westcoast Therapy, Inc. ("Plaintiff") moves for "partial summary judgment" or, in the alternative, summary adjudication against Defendant Angelica Xavier ("Xavier") as to the first, second and sixth causes of action in Plaintiff's Complaint.

Pursuant to Code of Civil Procedure section 437c(a)(1), a party may move for summary judgment in an action or proceeding if it is contended that there is no defense to the action or proceeding. Alternatively, pursuant to Code of Civil Procedure section 437c(f)(1), a party may move for summary adjudication as to one or more causes of action within an action if the party contends that there is no affirmative defense to the cause of action.

A plaintiff has met his or her burden of showing there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on that cause of action. (CCP §437c(p)(1)). Once the plaintiff has met that burden, the burden shifts to the defendant to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto." (Id.).

Initially, to the extent that Plaintiff seeks a "partial summary judgment," the motion is denied, as that is not a form of relief authorized by CCP §437c.

Sixth Cause of Action for Breach of Contract

"To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) the plaintiff's performance of the contract or excuse for nonperformance, (3) the defendant's breach, and (4) the resulting damage to the plaintiff." (*Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186.)

Here, Plaintiff alleges that Xavier breached three written contracts: (1) the X Brands Asset Purchase Agreement (the "XB APA"); (2) the Good Bites Asset Purchase Agreement (the "GB APA"); and (3) the Confidentiality and Proprietary Rights Agreement (the "Confidentiality Agreement") (Collectively the "Agreements"). (UF 5.) However, although all three agreements were signed by Xavier (as CEO), none of the contracts lists Xavier as a party. (See UF 6 and Sharifi Decl. Exhs. 1-3.)

The XB APA is between "X Brands Distribution, LLC, a Delaware Limited Liability Company ("Seller") and Westcoast Therapy, Inc., a California Corporation ("Buyer")." (Sharifi Decl., Exh. 1.) The GB APA is between "Good Bites, LLC, a Delaware Limited Liability Company ("Seller") and Westcoast Therapy, Inc., a California Corporation ("Buyer")." (Sharifi Decl., Exh. 2.) Finally, the Confidentiality Agreement is

		between "X-Brand LLC, a California Limited Liability Company and Good Bites, LLC, a California Limited Liability Company (the "Reserved") and Westcoast Therapy, Inc., a California Corporation (the "Discloser")." (Sharifi Decl., Exh. 3.) In an attempt to meets its burden of proving the first element of a breach of contract cause of action, i.e., the existence of a contract between the parties, Plaintiff contends that Xavier should be liable under the alter ego doctrine. Ordinarily, a corporation is regarded as a legal entity, separate and distinct from its stockholders, officers and directors, with separate and distinct liabilities and obligations. However, a corporate identity may be disregarded—the "corporate veil" pierced—where an abuse of the corporate privilege justifies holding the equitable ownership of a corporation liable for the actions of the corporation. (*Sonora Diamond Corp. v. Superior Court* (2000) 83 Cal.App.4th 523, 538 (*Sonora*).) The same is true of a limited liability company (LLC) and its members and managers. (*Angel Lynn Realty, Inc. v. George* (2025) 114 Cal.App.5th 655, 663.) "In California, two conditions must be met before the alter ego doctrine will be invoked. First, there must be such a unity of interest and ownership between the corporation and its equitable owner that the separate personalities of the corporation and the shareholder do not in reality exist. Second, there must be an inequitable result if the acts in question are treated as those of the corporation alone." (*Sonora* at 538.) "Among the factors to be considered in applying the doctrine are commingling of funds and other assets of the two entities, the holding out by one entity that it is liable for the debts of the other, identical equitable ownership in the two entities, use of the same offices and employees, and use of one as a mere shell or conduit for the affairs of the other." (*Id*. at 538-539.) "Other factors which have been described in the case law include inadequate capitalization, disregard of corporate formalities, lack of segregation of corporate records, and identical directors and officers." (*Id*. at p. 539.) "No one characteristic governs, but the courts must look at all the circumstances to determine whether the doctrine should be applied." (*Id*.) Further, "[a]lter ego is an extreme remedy, sparingly used." (*Id*.) Here, Plaintiff has not met its burden because it has not produced sufficient evidence to satisfy the first condition of the alter ego doctrine—i.e., a unity of interest between the Xavier, on the one hand, and either X Brands Distribution, LLC or Good Bites, LLC, on the other.

Plaintiff provides Statements of Information for both entities, which reflect that Xavier is a manager or member and the CEO of both entities. (Slack Decl. ¶7, Exh. 3; see also UF 1-2.) The only other potentially relevant fact set forth in Plaintiff's separate statement of material facts is that Xavier voluntarily dissolved X Brands during the pendency of this action. (UF 8, 9.) However, that fact would go to the second condition for invocation of the alter ego doctrine.

Overall, Plaintiff has not provided any evidence to support a finding of "such a unity of interest and ownership between the [LLC] and its [members] that the separate personalities of the [LLC] and the [member] do not in reality exist." Plaintiff baldly asserts in its motion that: "The funds of X Brands and Goodbites are absolutely commingled with Xavier's. In fact, based on Plaintiff's research, X Brands and Goodbites have never had their own bank accounts. X Brands and Goodbites are owned, controlled, and managed by Xavier." (Mtn. at 10:5-8.) However, none of these statements is supported by citations to evidence, and no such evidence has been provided.

Accordingly, the motion as to the sixth cause of action is DENIED.

First and Second Causes of Action for Conversion and Unjust Enrichment

Plaintiff's first cause of action for conversion and second cause of action for unjust enrichment are both predicated on a theory that the amounts paid by Plaintiff pursuant to the agreements were paid to Xavier individually, or that she should otherwise be individually responsible for reimbursing Plaintiff the amounts paid pursuant to the Agreements. (See Mtn. at 13:23-24 ("Plaintiff paid Xavier $795,000 pursuant to the agreements but received nothing in return and thus has been damaged by that amount."); Mtn. at 14:16-18 ("Xavier has obtained benefits from Plaintiff, including but not limited to $795,0000. It would be unjust for Xavier to retain such benefits and the monetary value of such benefits at the expense of Plaintiff.").)

However, Plaintiff has presented no evidence that Xavier diverted the funds from the entities that were to receive them, or that Xavier otherwise personally took control of the funds.

Accordingly, the motion as to the first and second causes of action is DENIED.

Plaintiff to give notice.
